

DISTRICT COURT, COUNTY OF DENVER, COLORADO 1437 Bannock Street Denver, CO 80202	DATE FILED: July 26, 2021 4:43 PM FILING ID: 8AF1345B934B7 CASE NUMBER: 2021CV32333
Plaintiff: ERIC RAY, -versus- Defendant: AUTO-OWNERS INSURANCE COMPANY	▲ COURT USE ONLY ▲
ATTORNEY FOR PLAINTIFF: Joseph A. Sirchio, Colorado Bar No.: 44675 FRANKLIN D. AZAR & ASSOCIATES, P.C. 14426 East Evans Avenue Aurora, Colorado 80014 Phone Number: (303) 757-3300 Fax Number: (303) 759-5203 E-Mail: sirchioj@fdazar.com	Case No. Division:
COMPLAINT FOR DAMAGES AND JURY DEMAND	

PLAINTIFF, Eric Ray, by and through his counsel, Franklin D. Azar & Associates, P.C. for his Complaint and Jury Demand states and alleges as follows:

PARTIES, JURISDICTON, AND VENUE

1. Plaintiff Eric Ray (hereinafter “Mr. Ray”) is a citizen and resident of the City of Aurora, State of Colorado.
2. Mr. Ray lives at 1325 South Laredo Court, Aurora, CO 80017.
3. The collision that is the nexus of this complaint occurred in Aurora, Colorado.
4. Defendant Auto-Owners Insurance Company (hereinafter “Defendant Auto-Owners”) is a Foreign Corporation conducting the business of insurance in the State of Colorado, including Denver County.
5. Defendant Auto-Owners is a Foreign Illinois corporation that exists in the State of Colorado whose agent for service is the Division of Insurance.
6. This Court may properly exercise personal jurisdiction over Defendant Auto-Owners because it transacts business in the State of Colorado. *See* C.R.S. § 13-1-124.
7. This Court may properly exercise subject matter jurisdiction over this action because it involves a civil matter and the district courts of Colorado are courts of general and original jurisdiction. *See* C.R.S. Const. Art. 6 § 9.
8. Venue is proper in this action pursuant to C.R.C.P. 98(c)(1).

GENERAL ALLEGATIONS

9. On May 7, 2019, Mr. Ray was driving a 2012 Ford Fusion.
10. On May 7, 2019, Muse Kassa was driving a 2009 Subaru Impreza.
11. Mr. Kassa was driving without insurance.
12. Mr. Kassa was driving westbound on East Mississippi Avenue.
13. Mr. Ray was driving eastbound on East Mississippi Avenue.
14. Mr. Kassa turned left in front of Mr. Ray.
15. Mr. Kassa did not have the right of way.
16. Mr. Kassa and Mr. Ray collided.
17. The collision was caused by the negligence of Mr. Kassa.
18. Mr. Ray was injured in the collision.
19. At the time of the collision Mr. Ray was covered by an insurance policy issued by Auto-Owners.
20. Mr. Ray timely notified Auto-Owners of the collision.
21. The Auto-Owners policy is identified by Policy Number: 51-645482-00.
22. Mr. Ray's policy with Auto-Owners contained \$250,000 in uninsured motorist ("UM") coverage per person per incident.
23. Mr. Ray's policy with Auto-Owners contained \$5,000 in MedPay Payments per person per incident.
24. On April 27, 2021, three emails containing medical records were sent to Auto-Owners with a request for UM benefits.
25. As of today, July 26, 2021, no substantive response has been received from Auto-Owners.
26. It is an unfair or deceptive trade practice to fail to affirm or deny coverage of claims within a reasonable time after proof of loss statements have been completed.
27. It has been 90 days and Auto-Owners has failed to affirm or deny coverage of Mr. Ray's submitted claim.
28. Auto-Owners is a sophisticated insurance company.
29. Auto-Owners' failure to timely respond to its insureds shows a willful indifference to their injuries.
30. Auto-Owners owes Mr. Ray a duty of good faith and fair dealing.
31. Auto-Owners has a contractual obligation to continually review Mr. Ray's medical records and bills.
32. Auto-Owners agrees that its delay in respond to Mr. Ray is unreasonable.
33. Auto-Owners agrees that Mr. Ray received a serious cervical injury in the collision.

- 34. Auto-Owners has failed to timely evaluated Mr. Ray's claim.
- 35. Auto-Owners dilatory conduct has caused Mr. Ray to go without UM benefits.
- 36. Auto-Owners received the three April 27, 2021 emails containing medical records and bills.

FIRST CLAIM FOR RELIEF
Breach of Contract – UIM Benefit

- 37. Plaintiff incorporates all prior allegations as though fully set forth herein.
- 38. Sometime prior to the accident, Mr. Ray entered into a contract with Auto-Owners for the purpose of obtaining automobile insurance, which policy includes coverage for claims involving uninsured motorists. At all times pertinent to the within action, all the premiums as required under the contract for insurance were paid to Auto-Owners.
- 39. Mr. Ray has advised Auto-Owners of a claim for uninsured motorist benefits for this incident under its policy of insurance, and otherwise fully cooperated with Auto-Owners in connection with the claim.
- 40. Mr. Ray is an intended beneficiary of Auto-Owners' insurance policy/contract and is therefore entitled to enforce its terms.
- 41. Mr. Ray is entitled to be compensated by Auto-Owners for all damages he has incurred, including significant medical bills and other expenses, pain, suffering, loss of enjoyment of life, loss of earnings and earning capacity, permanency, physical impairment, and disability, under the underinsured motorist coverage of the policy.

SECOND CLAIM FOR RELIEF
First-Party Statutory Claim under C.R.S. § 10-3-116

- 42. Mr. Ray incorporates all prior allegations as though fully set forth herein.
- 43. In accordance with C.R.S. 10-3-1115 and 1116, a Defendant insurer is liable for statutory damages in the event it unreasonably delays or denies payment of a covered first party benefit which includes benefits under underinsured motorist coverage provisions of automobile insurance contracts.
- 44. Auto-Owners has denied and/or delayed payment of underinsured motorist benefits to Mr. Ray without a reasonable basis for its action.
- 45. Auto-Owners' unreasonable position and conduct has caused Mr. Ray damage by the loss of the compensation that is due to him and which Auto-Owners should have previously paid to him.

46. In accordance with C.R.S. §10-3-1116, Mr. Ray is entitled to recover from Auto-Owners two times the covered under-insured motorist benefits plus reasonable attorney's fees and court costs.

THIRD CLAIM FOR RELIEF
Bad Faith

47. Mr. Ray incorporates all prior allegations as though fully set forth herein.
48. Auto-Owners owed Mr. Ray a duty to act in good faith in reviewing, adjusting and settling his claims.
49. Auto-Owners continues to owe a duty to act in good faith in review, adjusting, defending and settling his claims.
50. Auto-Owners breached its duties to its insured, and acted in bad faith, through its conduct as described above and by engaging in the following, among other acts:
- a. Compelling Mr. Ray to institute litigation to recover amounts due to him under the uninsured motorist bodily injury benefits afforded Mr. Ray under the insurance policy;
 - b. Favoring the interests of Auto-- Owners, an insurer, over those of Mr. Ray, an insured, to whom Auto-Owners owes fiduciary and statutory duties;
 - c. Failing or delaying payment of reasonable compensation for the injuries, damages, and losses Mr. Ray suffered at the hands of an uninsured motorist;
 - d. Incompetently evaluating Mr. Ray's claim.
51. Auto-Owners' actions were unreasonable.
52. Auto-Owners knew its conduct was unreasonable or disregarded the fact that its conduct was unreasonable.
53. As a direct result of Auto-Owners' breaches of its duties to its insured, Mr. Ray has been damaged including, but not necessarily limited to:
- a. Being forced to incur additional costs in litigation;
 - b. Experienced personal financial hardships;
 - c. Enduring the emotional trauma of being unnecessarily involved in a lawsuit with defendant; and
 - d. Being deprived of the use of funds that would otherwise be used for such things

as medical treatment which should have been paid by now.

WHEREFORE, Plaintiff Eric Ray prays for judgment against Defendant Auto-Owners Insurance Company for all general damages, economic damages, all statutory and necessary costs including, but not limited to, expert witness fees and the expenses incurred in investigation and discovery required to present Plaintiff's claims, attorney fees and interest from the time of the occurrence, post-judgment interest at the requisite rate, and for such other and further relief as this Court shall deem proper, just, and appropriate under the circumstances.

**PLAINTIFF RESPECTFULLY REQUESTS A TRIAL BY JURY ON ALL ISSUES
SO TRIABLE.**

Submitted: July 26, 2021

FRANKLIN D. AZAR & ASSOCIATES, P.C.

By: /s/ Joseph A. Sirchio

Joseph A. Sirchio, 44675

ATTORNEY FOR PLAINTIFF

Plaintiff's Address:

1325 South Laredo Court
Aurora, CO 80017